

Multiple Choice (10 marks)

1. In which of the following situations does the best evidence rule generally not apply?
 - (a) Collateral matters
 - (b) Public records
 - (c) When it's not offered to prove the contents of the document
 - (d) All of the above.
2. A criminal actor committed the crime of solicitation. Which of the following does not apply to solicitation?
 - (a) It is an agreement between two or more to commit a crime.
 - (b) It is solicitation of another to commit a felony.
 - (c) No act is needed other than the solicitation.
 - (d) Withdrawal is generally not a defense.
3. In which of the following stages does an indigent person not have the Sixth Amendment right to counsel?
 - (a) Preliminary Hearing
 - (b) Arraignment
 - (c) investigative surveillance
 - (d) Post-charge lineups
4. A man is charged with murder. During the trial, defense counsel offers the testimony of a man on death row admitting he hired another man to shoot the victim. The testimony is
 - (a) not hearsay.
 - (b) hearsay, but admissible as an admission.
 - (c) hearsay, but admissible as a dying declaration.
 - (d) hearsay not within any recognized exception.
5. Which of the following is not an element of common law burglary?
 - (a) A breaking and entry
 - (b) Of a dwelling, of another
 - (c) During the daytime
 - (d) With the intent to commit a felony therein.

True / False (10 marks)

Answer True or False

6. True or False: All warrantless searches, including cold pursuit, are permissible without any legal restrictions.
7. True or False: The Doctrine of Worthier Title asserts that a contingent remainder in a grantor's heirs is invalid, resulting in a reversion to the grantor.
8. True or False: The President can appoint ambassadors and justices of the Supreme Court without Senate approval.
9. True or False: Under the enabling clause of the Fourteenth Amendment, a state can regulate state officials from discriminating based on race.
10. True or False: In cases of slander, the plaintiff always has to prove special damages, regardless of the slander category.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the limitations of the necessary and proper power in supporting federal law, providing examples of its application and implications in constitutional law.
12. Discuss the implications of denying certain fundamental rights to individuals while granting them to others, and analyze how this situation constitutes an equal protection problem under constitutional law.

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